

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3262

By: George

AS INTRODUCED

An Act relating to fees; amending 28 O.S. 2021, Section 153, as amended by Section 5, Chapter 305, O.S.L. 2025 (28 O.S. Supp. 2025, Section 153), which relates to fees and costs in criminal proceedings; increasing sheriff's service fee; amending 28 O.S. 2021, Section 162, which relates to fees and costs in juvenile proceedings; increasing sheriff's service fee; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 28 O.S. 2021, Section 153, as amended by Section 5, Chapter 305, O.S.L. 2025 (28 O.S. Supp. 2025, Section 153), is amended to read as follows:

Section 153. A. The clerks of the courts shall collect as costs in every criminal case for each offense of which the defendant is convicted, irrespective of whether or not the sentence is deferred, the following flat charges and no more, except for standing and parking violations and for charges otherwise provided for by law, which fee shall cover docketing of the case, filing of

1 all papers, issuance of process, warrants, orders, and other
2 services to the date of judgment:

- 3 1. For each defendant convicted of
4 exceeding the speed limit by at least
5 one (1) mile per hour but not more than
6 ten (10) miles per hour, whether charged
7 individually or conjointly with others.....\$77.00
- 8 2. For each defendant convicted of a
9 misdemeanor traffic violation other than
10 an offense provided for in paragraph 1
11 or 5 of this subsection, whether charged
12 individually or conjointly with others.....\$98.00
- 13 3. For each defendant convicted of a
14 misdemeanor, other than for driving
15 under the influence of alcohol or other
16 intoxicating substance or an offense
17 provided for in paragraph 1 or 2 of this
18 subsection, whether charged individually
19 or conjointly with others.....\$93.00
- 20 4. For each defendant convicted of a
21 felony, other than for driving under the
22 influence of alcohol or other
23 intoxicating substance, whether charged
24 individually or conjointly with others.....\$103.00

b. outside of the county..... ~~\$50.00~~ \$150.00, or
actual, necessary
expenses, whichever
is greater

B. In addition to the amount collected pursuant to paragraphs 2 through 6 of subsection A of this section, the sum of Six Dollars (\$6.00) shall be assessed and credited to the Law Library Fund pursuant to Section 1201 et seq. of Title 20 of the Oklahoma Statutes.

C. In addition to the amount collected pursuant to subsection A of this section, the sum of Twenty Dollars (\$20.00) shall be assessed and collected in every traffic case for each offense other than for driving under the influence of alcohol or other intoxicating substance; the sum of Thirty Dollars (\$30.00) shall be assessed and collected in every misdemeanor case for each offense; the sum of Thirty Dollars (\$30.00) shall be assessed and collected in every misdemeanor case for each offense for driving under the influence of alcohol or other intoxicating substance; the sum of Fifty Dollars (\$50.00) shall be assessed and collected in every felony case for each offense; and the sum of Fifty Dollars (\$50.00) shall be assessed and collected in every felony case for each offense for driving under the influence of alcohol or other intoxicating substance.

1 D. In addition to the amounts collected pursuant to subsections
2 A and B of this section, the sum of Twenty-five Dollars (\$25.00)
3 shall be assessed and credited to the Oklahoma Court Information
4 System Revolving Fund created pursuant to Section 1315 of Title 20
5 of the Oklahoma Statutes.

6 E. In addition to the amount collected pursuant to paragraphs 1
7 through 6 of subsection A of this section, the sum of Ten Dollars
8 (\$10.00) shall be assessed and credited to the Sheriff's Service Fee
9 Account in the county in which the conviction occurred for the
10 purpose of enhancing existing or providing additional courthouse
11 security.

12 F. In addition to the amounts collected pursuant to paragraphs
13 1 through 6 of subsection A of this section, the sum of Three
14 Dollars (\$3.00) shall be assessed and credited to the Office of the
15 Attorney General Victim Services Unit.

16 G. In addition to the amounts collected pursuant to paragraphs
17 1 through 6 of subsection A of this section, the sum of Three
18 Dollars (\$3.00) shall be assessed and credited to the Child Abuse
19 Multidisciplinary Account. This fee shall not be used for purposes
20 of hiring or employing any law enforcement officers.

21 H. Prior to conviction, parties in criminal cases shall not be
22 required to pay, advance, or post security for the issuance or
23 service of process to obtain compulsory attendance of witnesses.

1 I. The amounts to be assessed as court costs upon filing of a
2 case shall be those amounts above-stated in paragraph 3 or 4 of
3 subsection A and subsections B, C, D and E of this section.

4 J. The fees collected pursuant to this section shall be
5 deposited into the court fund, except the following:

6 1. A court clerk issuing a misdemeanor warrant is entitled to
7 ten percent (10%) of the sheriff's service fee, provided for in
8 paragraph 9 of subsection A of this section, collected on a warrant
9 referred to the contractor for the misdemeanor warrant notification
10 program governed by Sections 514.4 and 514.5 of Title 19 of the
11 Oklahoma Statutes. This ten-percent sum shall be deposited into the
12 issuing Court Clerk's Revolving Fund, created pursuant to Section
13 220 of Title 19 of the Oklahoma Statutes, of the court clerk issuing
14 the warrant with the balance of the sheriff's service fee to be
15 deposited into the Sheriff's Service Fee Account, created pursuant
16 to the provisions of Section 514.1 of Title 19 of the Oklahoma
17 Statutes, of the sheriff in the county in which service is made or
18 attempted. Otherwise, the sheriff's service fee, when collected,
19 shall be deposited in its entirety into the Sheriff's Service Fee
20 Account of the sheriff in the county in which service is made or
21 attempted;

22 2. The sheriff's fee provided for in Section 153.2 of this
23 title;

1 3. The witness fees paid by the district attorney pursuant to
2 the provisions of Section 82 of this title which, if collected by
3 the court clerk, shall be transferred to the district attorney's
4 office in the county where witness attendance was required. Fees
5 transferred pursuant to this paragraph shall be deposited in the
6 district attorney's maintenance and operating expense account;

7 4. The fees provided for in subsection C of this section shall
8 be forwarded to the District Attorneys Council Revolving Fund to
9 defray the costs of prosecution; and

10 5. The following amounts of the fees provided for in paragraphs
11 2, 3, 5 and 6 of subsection A of this section, when collected, shall
12 be deposited in the Trauma Care Assistance Revolving Fund, created
13 pursuant to the provisions of Section 1-2530.9 of Title 63 of the
14 Oklahoma Statutes:

15 a. Ten Dollars (\$10.00) of the ninety-eight-dollar fee
16 provided for in paragraph 2 of subsection A of this
17 section,

18 b. Ten Dollars (\$10.00) of the ninety-three-dollar fee
19 provided for in paragraph 3 of subsection A of this
20 section,

21 c. One Hundred Dollars (\$100.00) of the four-hundred-
22 thirty-three-dollar fee provided for in paragraph 5 of
23 subsection A of this section, and
24

1 d. One Hundred Dollars (\$100.00) of the four-hundred-
2 thirty-three-dollar fee provided for in paragraph 6 of
3 subsection A of this section.

4 K. As used in this section, "convicted" means any final
5 adjudication of guilt, whether pursuant to a plea of guilty or nolo
6 contendere or otherwise, and any deferred judgment or suspended
7 sentence.

8 L. A court clerk may accept in payment for any fee, fine,
9 forfeiture payment, cost, penalty assessment or other charge or
10 collection to be assessed or collected by a court clerk pursuant to
11 this section a nationally recognized credit card or debit card or
12 other electronic payment method as provided in paragraph 1 of
13 subsection B of Section 151 of this title.

14 M. Upon receipt of payment of fines and costs for offenses
15 charged prior to July 1, 1992, the court clerk shall apportion and
16 pay Thirteen Dollars (\$13.00) per conviction to the court fund.

17 SECTION 2. AMENDATORY 28 O.S. 2021, Section 162, is
18 amended to read as follows:

19 Section 162. A. The clerks of the courts shall collect as
20 costs in every juvenile delinquency, child in need of supervision,
21 or deprived case in which the juvenile is adjudicated, irrespective
22 of whether or not the sentence is deferred, or minor in need of
23 treatment case pursuant to the Inpatient Mental Health and Substance
24 Abuse Treatment of Minors Act, Section 5-501 et seq. of Title 43A of

1 the Oklahoma Statutes, irrespective of whether the child is
2 committed for inpatient mental health or substance abuse treatment,
3 or in every such case in which a petition is filed at the demand of
4 the parents of a juvenile and said petition is subsequently
5 dismissed prior to adjudication at said parents' request, the
6 following flat charge and no more, except for the charges provided
7 for in this section, which fee shall cover docketing of the case,
8 filing of all papers, issuance of process, warrants and orders, and
9 other services to date of judgment:
10 For each case where one or more juveniles
11 are adjudicated deprived.....\$50.00
12 For each juvenile who is certified to stand
13 trial as an adult.....\$75.00
14 In each juvenile case wherein parental
15 rights are terminated.....\$50.00
16 For each juvenile adjudicated in need of
17 supervision.....\$50.00
18 For each child found to be a minor in need
19 of treatment.....\$50.00
20 For each juvenile adjudicated for an
21 offense which would be a misdemeanor if
22 committed by an adult, including
23 violation of any traffic law, whether
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1 charged individually or conjointly with
 2 others.....\$50.00
 3 For each juvenile adjudicated for an
 4 offense which would be a felony if
 5 committed by an adult, whether charged
 6 individually or conjointly with others.....\$75.00
 7 For the services of a court reporter at
 8 each trial held in the case.....\$20.00
 9 When a jury is requested.....\$30.00
 10 A sheriff's fee for serving or endeavoring
 11 to serve all writs, warrants, orders,
 12 process, commands, or notices or pursuing
 13 any fugitive from justice.....~~\$20.00~~
 14 \$150.00 or
 15 mileage as established
 16 by Oklahoma Statutes,
 17 whichever is greater.

18 B. In addition to the amount collected pursuant to subsection A
 19 of this section, the sum of Thirty Dollars (\$30.00) shall be
 20 assessed and collected for each juvenile case. The fees collected
 21 shall be forwarded to the District Attorneys Revolving Fund to
 22 defray the costs of prosecution.

23 C. Costs assessed pursuant to subsections A and B of this
 24 section shall be levied against the juvenile, the parent, or both,

1 but shall not be levied against the legal guardian or any state or
2 private agency having custody of any juvenile subject to such
3 proceedings.

4 D. Prior to adjudication, parties in juvenile delinquency,
5 child in need of supervision, minor in need of treatment, and
6 deprived cases shall not be required to pay, advance, or post
7 security for the issuance or service of process to obtain compulsory
8 attendance of witnesses. These fees shall be deposited into the
9 court fund, except the sheriff's fee, when collected, shall be
10 transferred to the general fund of the county in which service is
11 made or attempted to be made.

12 E. The clerk of the district court shall charge the sum of One
13 Hundred Dollars (\$100.00) for preparing, assembling, indexing, and
14 transmitting the record for appellate review. This fee shall be
15 paid by the party taking the appeal and shall be entered as costs in
16 the action. If more than one party to the action shall prosecute an
17 appeal from the same judgment or order, the fee shall be paid by the
18 party whose petition in error is determined by the district court or
19 by the appellate court to commence the principal appeal. The fees
20 collected hereunder shall be paid into the court fund.

21 F. Fees and costs collected in juvenile cases may be withdrawn
22 from the court fund and used for operations of the juvenile bureaus,
23 in counties wherein a statutory juvenile bureau is in operation,
24 upon approval by the Chief Justice of the Oklahoma Supreme Court.

1 G. In those seventy-four counties in which court services are
2 provided by contract between the Oklahoma Supreme Court and the
3 Department of Human Services, funds received from court costs in
4 juvenile cases may be withdrawn from the court fund and paid to the
5 Department of Human Services upon approval by the Chief Justice of
6 the Oklahoma Supreme Court. Said funds are to be expended by the
7 Department of Human Services to supplement community-based programs,
8 such as youth services programs, day treatment programs and group
9 home services. Specific annual training of Department workers in
10 community-based services providing the above court-related services
11 is also to be included for expenditure of funds received from court
12 costs in juvenile cases by the Department of Human Services.

13 H. In those seventy-four counties in which court services are
14 provided by contract between the Oklahoma Supreme Court and the
15 Office of Juvenile Affairs, funds received from court costs or
16 orders for care and maintenance in juvenile cases may be withdrawn
17 from the court fund and paid to the Office of Juvenile Affairs upon
18 approval by the Chief Justice of the Oklahoma Supreme Court. Said
19 funds are to be expended by the Office of Juvenile Affairs to
20 provide care and maintenance and to supplement community-based
21 programs, such as alternative education, juvenile offender community
22 and victim restitution work programs, community sanction programs,
23 youth services programs, day treatment programs, group home
24 services, and detention services. Specific annual training of

1 agency workers in community-based services providing the above
2 court-related services is also to be included for expenditure of
3 funds received from court costs in juvenile cases by the Office of
4 Juvenile Affairs.

5 SECTION 3. This act shall become effective November 1, 2026.

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